



CHAPTER 46.

An Act to abolish non-county boroughs as separate police areas ; to provide for the amalgamation of county and county borough police areas ; to provide for the purchase of land for police purposes by compulsory purchase order ; to redefine the Metropolitan Police District ; and for purposes connected with the matters aforesaid.

[15th April 1946.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Abolition of non-county boroughs as separate police areas and amalgamation of county and county borough forces.

1.—(1) On the appointed day every police area consisting of a non-county borough shall cease to be a separate police area, and every such borough, and every borough which is constituted as such after the appointed day, or, being a county borough on that day, ceases thereafter to be a county borough, shall be treated for all purposes as part of the police area of the county in which it is situated.

Abolition of non-county borough police forces.

(2) Subject to the provisions of this Act with respect to chief constables, every person who, immediately before the date of transfer, was a member of the police force of a borough which ceases to be a separate police area by virtue of this section shall be transferred to and become a member of the county police force.

(3) Except as may be otherwise provided by an agreement made (whether in consideration of a payment of money or

otherwise) between the council of any such borough as aforesaid and the standing joint committee acting with the concurrence of the council of the county,—

- (a) all officers who, immediately before the date of transfer, were employed by the council of the borough solely or mainly for the purposes of the exercise by that council, or by the watch committee of the borough, of any police functions shall be transferred to and become officers of the council of the county and shall hold office by the same tenure and on the same conditions as immediately before that date, and, while performing similar duties shall, in respect thereof, receive not less salary or remuneration than the salary or remuneration to which they would have been entitled if they had not been transferred; and
- (b) all property which immediately before the date of transfer was held by the council of the borough solely or mainly for police purposes, and all rights and liabilities, whether vested or contingent, to which any such council were entitled or subject immediately before that date by reason of the exercise of any of their police functions, shall be transferred by virtue of this section to the council of the county.

45 & 46 Vict.
c. 50.

(4) As from the appointed day, Part IX of the Municipal Corporations Act, 1882 (which relates to borough police forces), except section one hundred and ninety of that Act (which provides for the appointment of a watch committee), shall cease to have effect except as respects county boroughs, and references to boroughs in any other enactment relating to county or borough police forces shall be construed as not including references to non-county boroughs.

Adjustment
of rates in
consequence
of abolition
of non-county
borough
police forces.

2. Where the Secretary of State is satisfied that the amount of the rate required to be raised by the council of a non-county borough will be substantially increased by reason of the inclusion of the borough in the county police area under the provisions of this Act, he may by order direct that the provisions of the First Schedule to this Act shall apply in relation to the county in which the borough is comprised, and those provisions shall apply accordingly.

Voluntary
schemes for the
amalgamation
of county and
county
borough
police forces.

3.—(1) If it appears to the police authorities for any two or more police areas being counties or county boroughs that it is expedient that those areas should be amalgamated for police purposes, they may for that purpose submit to the Secretary of State a scheme (hereinafter referred to as an "amalgamation scheme") and the Secretary of State may by order approve any scheme so submitted to him.

(2) Subject to the provisions of this Act, an amalgamation scheme shall make provision with respect to the following matters, that is to say :—

- (a) the establishment of a combined force for the combined area, the transfer to that force of members of the constituent forces, and the appointment as first chief constable of the combined force of such person as may be specified in the scheme ;
- (b) the maintenance of the combined force by a combined police authority constituted in accordance with the provisions of the scheme, and the transfer to that authority of the police functions of the constituent authorities ;
- (c) the payment of the expenses of the combined force and of the combined police authority out of a combined police fund constituted in accordance with the provisions of the scheme ;
- (d) the payment into the combined police fund, out of the local funds of the constituent areas, of contributions assessed in accordance with the provisions of the scheme in respect of liabilities imposed on that fund by or under the scheme ;
- (e) the transfer to the combined police authority of such property, rights and liabilities of the constituent authorities (being property, rights and liabilities held or incurred for police purposes) as may be determined by or under the scheme, or the use by the combined police authority of any such property ;
- (f) the appointment of officers of the combined police authority (including a clerk of that authority and a treasurer of the combined police fund) and the transfer to the combined police authority of such officers of the constituent authorities as may be determined by or under the scheme ;
- (g) the delegation to any constituent authority of any functions of the combined police authority under section five of the Police, Factories, &c. (Miscellaneous Provisions), Act, 1916, or under the House to House Collections Act, 1939,

6 & 7 Geo. 5.
c. 31.
2 & 3 Geo. 6.
c. 44.

and may provide for any other matters incidental to or consequential on the provisions of the scheme.

(3) The provisions of the Second Schedule to this Act shall have effect for the purpose of adapting the enactments relating to police in their application to the combined area constituted by an amalgamation scheme, and to the combined force and combined police authority for that area ; and the constituent areas combined by such a scheme shall cease for all purposes to be separate police areas.

(4) In relation to a borough comprised in a county to which an amalgamation scheme applies, the foregoing provisions of this Act shall have effect as if for references therein to the police area of the county, the county police force and the council of the county there were substituted respectively references to the combined area constituted by the scheme, the combined force and the combined police authority, and as if in subsection (3) of section one of this Act the words "the standing joint committee acting with the concurrence of" were omitted.

(5) In this Act the expression "county scheme" means—

- (a) an amalgamation scheme which relates to counties only ; and
- (b) an amalgamation scheme which relates to one or more counties and to one or more county boroughs if, on the date on which the scheme comes into operation, the population or aggregate population of the county or counties, as estimated by the Registrar General, exceeds the population or aggregate population of the county borough or county boroughs, as so estimated ;

and the expression "borough scheme" means an amalgamation scheme not being a county scheme.

Power of
Secretary of
State to make
amalgamation
schemes.

4.—(1) Subject to the provisions of this section, if it appears to the Secretary of State that it is expedient in the interests of efficiency that an amalgamation scheme should be made for any such police areas as aforesaid, and no scheme satisfactory to him has been submitted to him by the police authorities for those areas under the last foregoing section, the Secretary of State may for that purpose by order make such scheme as he considers expedient, and the provisions of the last foregoing section shall apply in relation to any such scheme as they apply in relation to schemes made under that section :

Provided that where the population of a county or county borough, as estimated by the Registrar General, is one hundred thousand or upwards, then except with the consent of the council of the county or borough, no scheme shall be made by the Secretary of State under this section for the amalgamation of the county or borough with any police area or areas of which the population or aggregate population, as so estimated, exceeds that of the county or borough.

(2) Where the Secretary of State proposes to make a scheme under this section, he shall give to the police authorities concerned notice of the general nature of the proposed scheme ; and unless those authorities give notice to the Secretary of State that they assent thereto, the Secretary of State shall cause a local inquiry to be held by a person appointed by him (not being an officer of police or of any government department), and the provisions of subsections (2) and (3) of section two hundred and ninety

of the Local Government Act, 1933, shall apply to any inquiry so held as they apply to inquiries held under that section. 23 & 24 Geo. 5.
c. 51.

(3) The Secretary of State shall lay before each House of Parliament a draft of any scheme proposed to be made by him under this section, and, where a local inquiry has been held under this section with respect thereto, shall lay together with the draft a copy of the report of the person by whom the inquiry was held; and if either House within the period of forty days beginning with the day on which the draft scheme is laid before it resolves that the scheme be not made, no further proceedings shall be taken thereon, but without prejudice to the laying before Parliament of a new draft scheme.

In reckoning any such period of forty days, no account shall be taken of any time during which Parliament is dissolved or prorogued, or during which both Houses are adjourned for more than four days.

5.—(1) The combined police authority constituted by an amalgamation scheme shall consist of such representatives of each of the constituent areas as may be prescribed by the scheme, and every such authority shall be a body corporate by such name as may be prescribed by the scheme, with a common seal and with power to hold land without licence in mortmain. Constitution
and powers
of combined
police
authorities.

(2) Provision may be made by an amalgamation scheme for applying, in relation to the constitution and proceedings of the combined police authority and in relation to the officers of that authority, any of the provisions of Parts II to IV of the Local Government Act, 1933, subject to such modifications as may be prescribed by the scheme.

(3) A combined police authority shall have the same powers as the council of a county or county borough with respect to the acquisition of land for police purposes, including the powers in that behalf conferred on such councils by this Act, and to the appropriation and disposal of such land, and the provisions of this Act and of the Local Government Act, 1933, with respect to the acquisition, appropriation and disposal of land by such councils shall have effect accordingly as if references therein to the council of a county or county borough included references to a combined police authority.

(4) For the purpose of the discharge of their functions under the scheme, the combined police authority constituted by a county scheme shall have the powers of a county council, and the combined police authority constituted by a borough scheme shall have the powers of a county borough council, in relation to the borrowing of money for police purposes, and the provisions of Part IX of the Local Government Act, 1933, shall have effect accordingly, subject to such adaptations and modifications as may be prescribed by the scheme.

(5) The accounts of every combined police authority shall be subject to audit by a district auditor under Part X of the Local Government Act, 1933.

(6) A combined police authority may, if so authorised by the scheme, make arrangements with any constituent authority for the use by the combined police authority of the services of officers and servants of the constituent authority and the making of contracts and payments on behalf of the combined police authority by the constituent authority.

1 Edw. 8. &

1 Geo. 6. c. 68.

(7) The Local Government Superannuation Act, 1937, shall have effect as if a combined police authority were included among the local authorities specified in Part I of the First Schedule to that Act; and in relation to contributory employees of a combined police authority the appropriate superannuation fund for the purposes of that Act shall be such fund as may be determined by or under the scheme.

Amendment
and revocation
of amalgama-
tion schemes.

6.—(1) An amalgamation scheme made under section three or section four of this Act may be amended or revoked by a subsequent scheme made under either of those sections and the foregoing provisions of this Act, including the provisions of the Second Schedule to this Act, shall, so far as applicable, have effect in relation to any such amending or revoking scheme subject to any necessary modifications and to the following provisions of this section.

(2) Without prejudice to the generality of the provisions of subsection (1) of this section, provision may be made by any such subsequent scheme—

- (a) for the division of the combined area into any two or more police areas, being either counties or county boroughs or combined areas constituted by the subsequent scheme, or for the inclusion in the combined area of any other police area;
- (b) for the dissolution and winding up of any combined police authority constituted under the original scheme, and of any combined police fund established thereunder, or for the reconstitution of any such authority or fund;
- (c) for the transfer or retransfer to such police forces as may be determined by the subsequent scheme of members of the combined force;
- (d) for the transfer or retransfer to such authorities as may be determined by the subsequent scheme of any officers, property, rights or liabilities of the combined police authority;
- (e) for any other matters incidental to or consequential on the provisions of the subsequent scheme.

(3) The authority by whom a scheme for the amendment or revocation of an amalgamation scheme may be submitted to the Secretary of State under subsection (1) of section three of this Act

shall be the combined police authority constituted by the original scheme, or, where the scheme amends or revokes more than one amalgamation scheme, the combined police authorities constituted by those schemes; and references to police authorities in subsection (1) of section four of this Act shall be construed accordingly:

Provided that where the scheme provides for the inclusion in a combined area of any other police area (not being an area which, immediately before the date of transfer, was subject to an amalgamation scheme) the police authority for that other area shall be included among the authorities aforesaid.

(4) The authorities to whom, under subsection (2) of section four of this Act, notice must be given by the Secretary of State of a scheme proposed to be made by him for the amendment or revocation of an amalgamation scheme, shall be the authority by whom a scheme for that purpose might have been submitted by virtue of the last foregoing subsection, and the standing joint committee of any county, and the council of any borough, comprised in the combined area constituted by the original scheme or schemes.

(5) Where, in consequence of any alteration of local government areas, the combined area constituted by an amalgamation scheme becomes co-extensive with a single administrative county or county borough, the Secretary of State may give such directions as he considers expedient for amending the scheme in consequence of the alteration, but subject to any such directions the scheme shall remain in force and may be amended or revoked under this section.

7. If at any time after the commencement of this Act an order is made under the Local Government (Boundary Commission) Act, 1945, constituting any area as a new county or county borough as from a date specified in the order, an amalgamation scheme may be made under this Act with respect to that area so as to come into force at that date, and in relation to such a scheme the provisions of this Act shall apply subject to any necessary modifications, and as if for references to the police authority there were substituted references—

Power to make schemes in advance of alterations to local government areas.
8 & 9 Geo. 6. c. 38.

- (a) in the case of a new county, to the police authority for any county or combined area of which the whole or any part is to be comprised in the new county;
- (b) in the case of a new county borough, to the council of any borough of which the whole or any part is to be comprised in the county borough, and, where the whole or any part of a district not being a borough is to be so comprised, to the police authority for the county or combined area in which that district is situated.

Adaptation
of local Acts
relating to
police.

8.—(1) Where, by any local Act in force with respect to an area which ceases to be a separate police area by virtue of this Act or of a scheme thereunder, provision is made for conferring or imposing special powers or duties on the police, the Secretary of State may by order adapt the local Act so far as appears to him to be necessary or expedient for the purpose of the exercise or performance of those powers or duties by the police of the county, or of the combined area, as the case may be :

Provided that nothing in this section or in any order made in accordance therewith shall be construed as extending the area within which or the matters in relation to which any such powers or duties as aforesaid are authorised or required by the local Act to be exercised or performed.

(2) Any order made by the Secretary of State under this section shall be laid before Parliament immediately after it is made ; and if either House of Parliament, within the period of forty days beginning with the day on which any such order as aforesaid is laid before it, resolves that the order be annulled, it shall thereupon become void, but without prejudice to the validity of anything previously done thereunder or to the making of a new order.

In reckoning any such period of forty days as aforesaid, no account shall be taken of any time during which Parliament is dissolved or prorogued, or during which both Houses are adjourned for more than four days.

(3) The power of the Secretary of State to make orders under this section shall include power to revoke or amend any such order by a subsequent order.

Transitory
provisions,
etc.

9.—(1) The transitory provisions set out in the Third Schedule to this Act shall have effect in relation to any alteration of police areas effected by virtue of section one of this Act or by virtue of a scheme under this Act.

(2) Where, immediately before the date of transfer, proceedings were pending by or against any authority with respect to any property, rights or liabilities which are transferred by virtue of this Act or of any scheme thereunder, those proceedings may be carried on thereafter with the substitution, for that authority, of the authority to whom the property, rights or liabilities are so transferred.

(3) Where any officers, property, rights or liabilities have been transferred by virtue of this Act or of any scheme thereunder from one authority to another, or will be so transferred on the date of transfer, those authorities may by agreement provide for the making of such adjustments in relation to their respective property, rights and liabilities as appear to them to be desirable having regard to the transfer, and any such agreement may, in

particular, provide for the making of payments by either party thereto.

(4) If any question arises—

- (a) whether any persons, property, rights or liabilities have been or will on the date of transfer be transferred from one authority to another by virtue of this Act or of any scheme thereunder ; or
- (b) whether any such adjustment as is mentioned in the last foregoing subsection ought to be made between any authorities,

that question shall, in default of agreement between the authorities concerned (including, in the case of any such question as is mentioned in paragraph (a) of this subsection which relates to a county, the standing joint committee), be referred to the arbitration of a single arbitrator agreed upon between the parties, or in default of agreement appointed by the Secretary of State, and the award of the arbitrator with respect to any such question as is mentioned in paragraph (b) of this subsection may provide for any matter for which provision might have been made by an agreement under the last foregoing subsection.

10.—(1) If in consequence of the provisions of this Act, or of any scheme made thereunder or in consequence of anything done under this Act or any such scheme, any person who, immediately before the date of transfer, was an officer employed by the council of a county or borough or by a combined police authority suffers direct pecuniary loss by reason of the determination of his appointment or the diminution of his emoluments, he shall, unless provision for his compensation for that loss is made by or under any other enactment for the time being in force, be entitled to receive compensation under this section from the appropriate authority.

Compensation
of officers
prejudicially
affected.

(2) The provisions of subsections (2) and (3) of section one hundred and fifty of the Local Government Act, 1933, shall have effect in relation to any claim for compensation under this section as if for any reference therein to the date on which a scheme or order made by the Minister of Health under Part VI of that Act comes into operation there were substituted a reference to the date of transfer and as if for any other reference therein to such a scheme or order there were substituted a reference to this Act or a scheme made thereunder ; and for the purpose of those subsections in their application to any such claim the expression "existing officer" shall mean any person who, immediately before the said date, was an officer employed by any such council or authority as aforesaid.

(3) For the purposes of the determination and payment of compensation under this section the provisions of the Fourth Schedule to the Local Government Act, 1933, shall be incorporated

with this section, subject to the following modifications, that is to say :—

- (a) references to a local authority shall be construed as including references to any authority, not being a local authority, by whom compensation is payable under this section ;
- (b) references to a scheme or order shall be construed as references to this Act or to a scheme made under this Act.
- (4) In this section the expression “ the appropriate authority ” means—
 - (a) in relation to a pecuniary loss incurred in consequence of a borough becoming part of the police area of a county under section one of this Act, the council of that county ;
 - (b) in relation to a pecuniary loss incurred in consequence of a borough becoming part of a combined area under section one and subsection (4) of section three of this Act, such authority as may be determined by or under the scheme constituting that combined area ; and
 - (c) in relation to a pecuniary loss incurred in consequence of the coming into operation of a scheme under this Act, such authority as may be determined by or under that scheme.

Chief
constables.

11.—(1) The person appointed by an amalgamation scheme to be the first chief constable of the combined force shall be a member of a police force, and shall be the chief constable of one of the constituent forces unless the Secretary of State is satisfied, having regard to any exceptional circumstances, that no such chief constable is suitable for the appointment.

(2) The chief constable of a non-county borough force shall not be transferred by virtue of this Act to the county force or to the combined force constituted by a county scheme made before the appointed day unless before the date of transfer he agrees to join that force in some capacity other than that of a chief constable ; and the chief constable of a constituent force shall not be transferred to the combined force constituted by a scheme under this Act unless he is appointed as the first chief constable of that force or unless before the date of transfer he agrees to join that force in some other capacity.

(3) A chief constable who is not transferred as aforesaid shall be deemed to have retired from his police force immediately before the date of transfer, and the following provisions of this subsection shall apply to him, that is to say :—

- (a) during the period of three months beginning with the date aforesaid (or, if within those three months he joins the

county force or the combined force, as the case may be, during the period beginning with the date aforesaid and ending with the date next before the date on which he joins that force) he shall be entitled to be paid out of the county fund, or out of the combined police fund, as the case may be, a salary and emoluments at the same rate as the salary and emoluments which he would have been entitled to receive had he continued to be the chief constable of his police force ;

(b) if during the said three months he joins the county force or the combined force, as the case may be, he shall be deemed for the purposes of the Police Pensions Act, 1921, ^{11 & 12 Geo. 5. c. 31.} to have served in that force during the period for which he is in receipt of a salary under paragraph (a) of this subsection ;

(c) if during the said three months he does not join the county force or the combined force, as the case may be, there shall, at the expiration of the said three months, be payable out of the county fund, or out of the combined police fund, as the case may be, to him or, in the event of his death, to his wife, children or other dependent relatives, such pension, gratuity or allowance, and on such terms, as may be prescribed by regulations made by the Secretary of State :

Provided that the amount of any pension, gratuity or allowance payable under paragraph (c) of this subsection shall, in a case where the former chief constable would have been entitled, with the consent of the police authority, to retire at the expiration of the said three months without a medical certificate and receive an ordinary pension for life, be not less than it would have been if he had so retired, and the amount of any pension payable under that paragraph to the widow of a former chief constable shall not be reduced, in the event of his death, by reference to the number of complete years (if any) during which a pension was payable to him thereunder before he attained the age of sixty-five.

(4) Where a chief constable, in pursuance of an agreement in that behalf made by him before the date of transfer, is transferred to the county force, or to the combined force constituted by a scheme under this Act, in any capacity other than that of chief constable or assistant chief constable, or joins that force in any such capacity within the period of three months beginning with the date of transfer, then, subject to any agreement to the contrary made between him and the police authority of the county or the combined area, as the case may be, he shall, while he serves in that force, be treated for the purposes of section one of the Police Pensions Act, 1921 (which prescribes the age of compulsory retirement) and of subsection (3) of section two of

that Act (which restricts the right of chief constables to retire) as if he were a chief constable.

(5) The provisions of the Police Pensions Act, 1921, shall apply, subject to such exceptions and modifications as may be prescribed by regulations made by the Secretary of State, to any pension, gratuity or allowance payable under paragraph (c) of subsection (3) of this section.

Consolidation
agreements
under County
Police Act,
1840, etc.
3 & 4 Vict.
c. 88.
19 & 20 Vict.
c. 69.

12.—(1) Sections fourteen and fifteen of the County Police Act, 1840, and sections five and twenty of the County and Borough Police Act, 1856 (which relate to the consolidation of borough police forces with county police forces by agreement or by Order in Council) shall cease to have effect :

Provided that any agreement made under the said section fourteen (in this section referred to as a "consolidation agreement") which is in force at the commencement of this Act shall continue in force by virtue of this Act unless and until it ceases to have effect or is determined in accordance with the subsequent provisions of this section.

(2) Where, immediately before the appointed day, the police force of a non-county borough is subject to a consolidation agreement, or where a county borough the police of which is subject to such an agreement ceases after the appointed day to be a county borough, the agreement shall cease to have effect on the date of transfer, and the provisions of this Act with respect to the abolition of non-county borough police forces shall, so far as applicable, apply in relation to the borough as if it had previously been a separate police area, and references in those provisions to the police functions of the borough and to the exercise of such functions by the council or watch committee of the borough shall be construed accordingly.

(3) An amalgamation scheme may be made under this Act for the amalgamation for police purposes of the areas of a county borough and a county, notwithstanding that those areas are subject to a consolidation agreement, as if they were separate police areas, and any such scheme may determine the consolidation agreement as from such date as may be specified in the scheme, and may make provision for any purpose for which provision may be made by a scheme revoking an amalgamation scheme.

(4) Without prejudice to the provisions of the last foregoing subsection, the parties to a consolidation agreement may, by an agreement approved by the Secretary of State, determine the consolidation agreement as from such date as may be specified in the agreement under this subsection, and any such agreement may make provision for any purpose for which provision may be made by a scheme revoking an amalgamation scheme under this Act.

(5) Subject to the foregoing provisions of this section, a borough to which a consolidation agreement applies shall be deemed for the purposes of a scheme under this Act to form part of the county and the consolidated force shall be deemed to be the county force :

Provided that the borough shall be treated as a separate constituent area for the purposes of paragraph (d) of subsection (2) of section three, and of subsection (1) of section five of this Act, and the council of the borough shall be treated as a separate constituent authority for the purposes of paragraphs (e) and (f) of the said subsection (2) and of subsection (5) of the said section five.

(6) In relation to the determination of a consolidation agreement under this section the provisions of the Third Schedule to this Act shall have effect as if references therein to a transferred area included references to the county police area as well as to the borough police area, and as if references therein to an amalgamation scheme and to a scheme under this Act revoking an amalgamation scheme included respectively references to a consolidation agreement and to a scheme or agreement under this section ; and provision may be made—

- (a) where the consolidation agreement is determined by an amalgamation scheme or by an agreement under this section, by that scheme or agreement ;
- (b) in any other case, by an order made by the Secretary of State after consultation with the authorities concerned or by an agreement made between those authorities with the approval of the Secretary of State,

for the making of such adjustments in relation to the respective property, rights and liabilities of the parties to the agreement as may be desirable in consequence of the determination thereof.

13.—(1) The Defence (Amalgamation of Police Forces) Regulations, 1942, made by His Majesty in Council under the Emergency Powers (Defence) Acts, 1939 and 1940, shall cease to have effect :

Orders under
Defence
(Amalgama-
tion of Police
Forces)
Regulations,
1942.

Provided that any order for the amalgamation of police forces made by the Secretary of State under the said Regulations (hereinafter referred to as an "amalgamation order") shall, if in force at the commencement of this Act, continue in force by virtue of this Act until the appointed day unless it is previously revoked in accordance with the subsequent provisions of this section.

(2) An amalgamation scheme may be made under this Act with respect to any county or county borough which is subject to an amalgamation order as if it were a separate police area, and any such scheme may revoke the amalgamation order as from such date as may be specified in the scheme, and may make

provision for any purpose for which provision may be made by a scheme revoking an amalgamation scheme under this Act.

(3) Without prejudice to the provisions of the last foregoing subsection, the Secretary of State may, by order made at any time before the appointed day, revoke or amend any amalgamation order, and any order under this subsection may make provision for any purpose for which provision may be made by a scheme revoking or amending an amalgamation scheme under this Act, and, in the case of an amending order, may confer on the joint authority constituted by the amalgamation order the powers of acquisition of land conferred on combined police authorities by subsection (3) of section five of this Act.

(4) In relation to the revocation or determination of an amalgamation order under this section, the provisions of the Third Schedule to this Act shall have effect as if references therein to a transferred area included references to the joint area constituted by that order as well as to the areas previously comprised in that joint area, and as if references therein to an amalgamation scheme and to a scheme under this Act revoking an amalgamation scheme included respectively references to an amalgamation order and to an order under this section; and the Secretary of State may by order provide for the making of such adjustments in relation to the respective property, rights and liabilities of the councils or police authorities for the areas previously subject to the amalgamation order as appear to him after consultation with those councils or authorities to be desirable in consequence of the revocation or determination of that order.

(5) If with the approval of the Secretary of State an agreement is made between the authorities concerned with respect to the transfer of any property, rights or liabilities of the joint authority constituted by an amalgamation order which is revoked or ceases to have effect under this section, or with respect to the making of any such adjustments as are mentioned in the last foregoing subsection, the provisions of that agreement shall have effect as if contained in an order made by the Secretary of State under this section.

(6) Where, on the date on which an amalgamation order is revoked or ceases to have effect under this section, any area previously comprised in the joint area constituted by that order becomes comprised, by virtue of this Act or of a scheme made thereunder, in the county police area or in a combined area, as the case may be, then if any person, who immediately before the date on which the amalgamation order came into force was the chief constable of a force amalgamated by that order, is serving immediately before the date on which that order is revoked or ceases to have effect as a member of the joint force constituted by that order in any capacity other than that of chief constable, the provisions of this Act with respect to chief constables shall

have effect in relation to that person as if he were the chief constable of that area.

(7) Where, immediately before the date of the transfer, a non-county borough was comprised in the joint area constituted by an amalgamation order, the provisions of this Act with respect to the abolition of non-county borough police forces shall, so far as applicable, apply as if the borough had previously been a separate police area, and references in those provisions to the police functions of the borough and to the exercise of such functions by the council or watch committee of the borough shall be construed accordingly.

14.—(1) In relation to a person to whom section one of the Provisions Police and Firemen (War Service) Act, 1939, applies at the date as to of transfer, being a person who had ceased to serve as a constable constables serving in the in a transferred force in order to serve in His Majesty's forces, forces or on overseas the provisions of that Act shall have effect in relation to any period after the date of transfer as if for any reference therein to police service. 2 & 3 Geo. 6. c. 103. the police force in which he was serving immediately before he ceased to serve as a constable there were substituted a reference to the new force, and references in that Act to the appropriate authority shall be construed accordingly.

(2) In relation to a person who, before the date of transfer, has engaged in accordance with the provisions of section two of the Police (Overseas Service) Act, 1945, for a period of overseas 9 & 10 Geo. 6. c. 17. service, and who, before he so engaged, was either—

(a) a member of a transferred force ; or

(b) a person to whom section one of the Police and Firemen (War Service) Act, 1939, applied, having ceased to serve as a constable in a transferred force in order to serve in His Majesty's forces,

the provisions of the said section two shall have effect, in relation to any period after the date of transfer, as if for any reference therein to his home police force there were substituted a reference to the new force, and references in that section to the appropriate authority shall be construed accordingly.

(3) Nothing in the last foregoing subsection shall be construed as entitling a person who has engaged for a period of overseas service to revert to the new force as the chief constable of that force ; but where any person who, immediately before he so engaged, was the chief constable of a transferred force would but for this provision be so entitled to revert to the new force, then—

(a) if he does not join that force in some capacity other than that of chief constable at the end of his period of overseas service in pursuance of an agreement in that behalf made by him during that period, subsection (3) of section eleven of this Act shall apply to him as if for any

reference therein to the date of transfer there were substituted a reference to the end of that period ; and

- (b) if he joins that force at the end of his period of overseas service or within the period of three months thereafter, subsection (4) of that section shall apply to him as it applies to a chief constable who is transferred to or joins a county or combined force as provided in that subsection.

(4) Where the transferred force is a joint force constituted by an amalgamation order, and any person who, immediately before that order came into operation, was the chief constable of one of the constituent forces comprised in that force, after serving in the joint force in some capacity other than that of chief constable, has engaged in accordance with section two of the Police (Overseas Service) Act, 1945, for a period of overseas service which has not expired at the date of transfer, then if at the end of that period he becomes entitled to revert to the new force by virtue of that Act as amended by this section, paragraphs (a) and (b) of the last foregoing subsection shall apply to him as they apply to a person who, before he so engaged, was the chief constable of a transferred force.

(5) In this section the expressions " transferred force " and " new force " have respectively the same meanings as they have for the purpose of the Third Schedule to this Act, and the expression " overseas service " has the same meaning as it has for the purposes of the Police (Overseas Service) Act, 1945.

Amendments of law relating to county, borough and metropolitan police.

Compulsory purchase of land for police purposes by county and county borough councils.

15. The council of any county or county borough being a separate police area may be authorised, by means of an order made by the council and confirmed by the Minister of Health, to purchase compulsorily any land, whether situated within or without the county or borough, which is required for the purpose of any of the functions of the police authority for the county or borough.

Rectification of Metropolitan Police District.

10 Geo. 4.
c. 44.

2 & 3 Vict.
c. 47.

16.—(1) As from the appointed day, the Metropolitan Police District shall consist of the areas specified in the Fourth Schedule to this Act, and so much of section four of the Metropolitan Police Act, 1829, as defines that District, section thirty-four of that Act, and section two of the Metropolitan Police Act, 1839, shall cease to have effect.

(2) This section and the Metropolitan Police Acts, 1829 to 1935, may be cited together as the Metropolitan Police Acts, 1829 to 1946 and this section shall be construed as one with those Acts.

Supplemental.

17.—(1) Where, on the thirtieth day of June, nineteen hundred and thirty-nine, the population of a non-county borough, as estimated by the Registrar General, exceeded one half of the population of the administrative county comprising the borough, as so estimated, the provisions of this Act shall apply to the borough as if it were a county borough, and references in this Act to county boroughs and to non-county boroughs shall be construed accordingly. Special provisions as to certain non-county boroughs.

(2) Any scheme made under this Act relating to the borough of Cambridge shall provide for the inclusion among the members of the combined police authority constituted by the scheme of five representatives of the University of Cambridge; and nothing in any such scheme shall affect the provisions of section fifty-one of the Cambridge Award Act, 1856 (which provides for the constitution of the watch committee of the said borough and for the representation thereon of members of the university). 19 & 20 Vict. c. xvii.

18. This Act shall apply to the Isles of Scilly as if they were a county, and for the purposes of such application this Act shall have effect as if for any reference therein to a county council, a standing joint committee or a county fund, there were substituted references respectively to the Council of the Isles of Scilly, the Joint Police Committee for the Isles and the general fund of the Council. Application to Isles of Scilly.

19.—(1) In this Act, except where the context otherwise requires, the following expressions have the meanings hereby respectively assigned to them, that is to say:— Interpretation.

“Amalgamation scheme”, “borough scheme” and “county scheme” have the meanings assigned thereto by section three of this Act;

“Appointed day” means the first day of April, nineteen hundred and forty-seven;

“Combined area” means the combined police area constituted by an amalgamation scheme;

“Combined force” means the police force established by an amalgamation scheme;

“Combined police authority” means the authority responsible for the maintenance of a combined force;

“Combined police fund” means the fund established by an amalgamation scheme for the payment of the expenses of the combined force and the combined police authority;

“Constituent area” means a police area which is combined by an amalgamation scheme, and includes, in relation to a scheme amending an amalgamation scheme, the combined area constituted by the original scheme;

"Constituent authority" means the police authority for an area which is combined by an amalgamation scheme and includes, in the case of a county, the council of the county, and, in the case of a county borough, the council of the borough ;

"Constituent force" means the police force for a constituent area ;

"Date of transfer", in relation to a borough which ceases to be a separate police area by virtue of section one of this Act, means the appointed day or, in the case of a county borough which ceases to be a county borough after the appointed day, the date on which it ceases to be a county borough ; and in relation to a police area to which a scheme under this Act applies means the date on which that scheme comes into operation ;

"Enactment" includes an order, regulation or other instrument having effect by virtue of an Act ;

"Local fund", in relation to a county, means the county fund, and in relation to a county borough means the general rate fund ;

"Officer" includes a servant ;

"Police authority" means, in relation to a county, the standing joint committee for the county, and in relation to a county borough, the watch committee ;

"Standing joint committee" means the standing joint committee of the quarter sessions of a county and the county council.

(2) References in this Act to any enactment shall be construed as references to that enactment as amended by any subsequent enactment.

Short title,
extent and
repeals.
20 & 21 Vict.
c. 72.

20.—(1) This Act may be cited as the Police Act, 1946.

(2) Except so far as it amends section eleven of the Police (Scotland) Act, 1857, this Act shall not extend to Scotland.

(3) This Act shall not extend to Northern Ireland.

(4) The enactments specified in the Fifth Schedule to this Act are hereby repealed to the extent mentioned in the third column of that Schedule, in the case of the enactments specified in Part I of that Schedule, as from the commencement of this Act, and in the case of the enactments specified in Part II of that Schedule, as from the appointed day.

SCHEDULES.

FIRST SCHEDULE.

PROVISIONS FOR ADJUSTMENT OF RATES PAYABLE IN CERTAIN COUNTRIES. Section 2.

1. There shall be ascertained the aggregate of the following amounts, that is to say—

- (a) the net approved police expenditure of the council of the county for the year ended on the thirty-first day of March, nineteen hundred and thirty-nine (in this Schedule referred to as the standard year); and
- (b) the net approved police expenditure for the standard year of the council of each non-county borough comprised in the county which maintained a separate police force during that year;

and the amount so ascertained shall be taken to be the standard police expenditure of the county.

2. There shall be ascertained the amount in the pound of the rate that would have been required by precept of the council of the county to be levied by rating authorities for the purpose of meeting the standard police expenditure of the county if that expenditure had constituted expenditure for general county purposes; and the amount so ascertained shall, in relation to each non-county borough comprised in the county, be taken to be the notional standard police rate of the borough.

3. There shall be ascertained, in the case of each non-county borough comprised in the county, the amount in the pound of the rate required to raise the amount of the net approved police expenditure of the council of the borough for the standard year; and the amount so ascertained shall be taken to be the actual standard police rate of the borough.

4. There shall be ascertained, in the case of each of the three years next after the appointed day, the amount in the pound of the rate which, if this Schedule did not apply to the county, would be required by precept of the council of the county to be levied in that year by the rating authority for each of the county districts in the county for the purpose of meeting the expenditure of the county council for general county purposes; and the amount so ascertained in relation to any such district shall be taken to be the unadjusted county rate of that district for that year.

1ST SCH.
—cont.

5. Where the notional standard police rate of any non-county borough comprised in the county exceeds the actual standard police rate of the borough by twopence or upwards, then, during each of the said three years, the amount of the rates required by precept of the council of the county to be levied by rating authorities for the purpose of meeting the expenditure of that council for general county purposes shall be varied as follows, that is to say—

- (a) in the case of any such borough as aforesaid, the rate shall be less than the unadjusted county rate by the appropriate fraction of the difference between the notional and the actual standard police rates of the borough ;
- (b) in the case of a non-county borough of which the notional standard police rate is equal to the actual standard police rate, or exceeds the actual standard police rate by less than twopence, the rate shall be equal to the unadjusted county rate ; and
- (c) in the case of the other county districts, the rate shall be the unadjusted county rate together with such additional equal amount as may be required to raise the balance of the said expenditure.

6. For the purposes of the last foregoing paragraph the appropriate fraction shall be—

- (a) in the first year after the appointed day, three-quarters ;
- (b) in the second such year, one-half ;
- (c) in the third such year, one-quarter.

7.—(1) In this Schedule the expression “ approved police expenditure ” means expenditure incurred for police purposes and approved by the Secretary of State for the payment of grant out of moneys provided by Parliament, and the expression “ net approved police expenditure ” means approved police expenditure after deducting the amount of any grant so paid.

(2) Where, during the standard year, an agreement was in force under section fourteen of the County Police Act, 1840, for consolidating the police force of a borough with that of the county, then—

- (a) where the borough is a non-county borough, the net approved police expenditure of the council of the borough for the standard year shall, for the purposes of paragraph 3 of this Schedule, be taken to be the amount of the contribution paid by that council in respect of that year in pursuance of the consolidation agreement ;
- (b) where the borough is a county borough, the amount of the contribution paid by the council of the borough in respect of the standard year in pursuance of the consolidation agreement shall be deducted in calculating for the purpose of paragraph 1 of this Schedule the net approved police expenditure of the council of the county for that year.

SECOND SCHEDULE.

ADAPTATION OF ENACTMENTS WITH RESPECT TO AMALGAMATION Section 3. SCHEMES.

1. Subject to the provisions of this Schedule, references in any enactment to a police area or district or to a police force shall be construed respectively as including references to a combined area or to a combined force; and in relation to a combined area or a combined force references in any enactment to the police authority, the chief officer of police, or the police fund shall be construed respectively as references to the combined police authority, the chief constable of the combined area, and the combined police fund.

2.—(1) Subject to the provisions of this Schedule, any enactment relating to county police (including special constables) shall apply in relation to the combined area constituted by a county scheme as if that area were a county, and as if for references to any term mentioned in the first column of the following Table there were substituted references to the term set out opposite that term in the second column of that Table :—

TABLE.

Standing joint committee for the county.	Combined police authority.
Chief constable of the county ...	Chief constable of the combined area.
Justice of the peace for the county	Justice of the peace having jurisdiction in any part of the combined area.
Clerk of the peace of the county or clerk of the county council.	Clerk of the combined police authority.
County fund	Combined police fund.
Treasurer of the county	Treasurer of the combined police fund.

(2) Subject to the provisions of this Schedule, any enactment relating to borough police (including special constables) shall apply in relation to the combined area constituted by a borough scheme as if that area were a borough having a separate police force, and as if for references to any term mentioned in the first column of the following Table there were substituted references to the term set out opposite that term in the second column of that Table :—

TABLE.

Watch Committee	Combined police authority.
Superintendent of the borough police.	Chief constable of the combined area.
Justice of the peace having jurisdiction in the borough.	Justice of the peace having jurisdiction in any part of the combined area.
Borough fund or general rate fund.	Combined police fund.

2ND SCH.
—cont.

Provided that any enactment which requires the approbation or consent of the council of a borough for the purpose of the exercise by the watch committee of any of their powers shall not apply in relation to the exercise of those powers by the combined police authority.

2 & 3 Vict.
c. 93.

3.—(1) Section eight of the County Police Act, 1839 (which relates to the jurisdiction of county constables) shall have effect as if the reference therein as amended by this Schedule to a county adjoining a county, or adjoining the combined area constituted by an amalgamation scheme, included a reference to a combined area constituted by a county scheme and adjoining a county or adjoining such an area.

(2) References to a county in subsection (2) of section one hundred and ninety-one of the Municipal Corporations Act, 1882 (which relates to the jurisdiction of borough constables) shall include references to the combined area constituted by an amalgamation scheme.

1 & 2 Will. 4.
c. 41.

4. Special constables shall not be appointed under the Special Constables Act, 1831, or under section one hundred and ninety-six of the Municipal Corporations Act, 1882, for any county or borough comprised in a combined area, but any appointment of a special constable under those Acts as amended by this Schedule shall be made for the whole of the combined area.

5. Section eleven of the Police (Scotland) Act, 1857 (which prescribes the jurisdiction of constables in the border counties) shall have effect as if the references therein to the border counties of Northumberland and Cumberland included references respectively to a combined area comprising Northumberland and a combined area comprising Cumberland.

22 & 23 Vict.
c. 32.

6. Section twenty-four of the County and Borough Police Act, 1859 (which provides for grant of gratuities to constables for special services), shall have effect as if the reference therein to the police rate included a reference to the combined force fund.

53 & 54 Vict.
c. 45.

7. Paragraph (1) of the proviso to section thirty-three of the Police Act, 1890 (which defines police areas and police authorities) shall not apply with respect to the powers of the combined police authority under a county scheme, or with respect to sums payable under that Act by such an authority; and paragraph (2) of that proviso shall not apply with respect to contributions required to be made by such a scheme.

10 Edw. 7 &
1 Geo. 5. c. 13.

8. The Police (Weekly Rest Day) Act, 1910, shall apply to a combined police authority as it applies to the police authority of a county or borough.

9 & 10 Geo 5.
c. 46.

9. Paragraph 12 of the Schedule to the Police Act, 1919 (which provides for the election of a central committee by delegates of certain police forces), shall have effect as if references therein to county police forces and borough police forces included respectively references to combined forces constituted by county schemes and borough schemes.

10.—(1) The court of quarter sessions to which an application may be made under subsection (1) of section seventeen of the Police Pensions

Act, 1921, by a person aggrieved by a decision of a combined police authority shall be—

2ND SCH.
—*cont.*

(a) in the case of a combined area constituted by a county scheme, the court of quarter sessions for any county comprised in the combined area ;

(b) in the case of a combined area constituted by a borough scheme, the court of quarter sessions for any county or borough comprised in the combined area.

(2) Paragraph (a) of the proviso to section thirty of the said Act (which defines police areas and police authorities) shall not apply with respect to the powers of the combined police authority under a county scheme or with respect to sums payable under that Act by such an authority ; and paragraph (b) of that proviso shall not apply with respect to contributions required to be made by virtue of such a scheme.

11. Subsection (2) of section one hundred and eighty-four of the Local Government Act, 1933, and paragraph (a) of the proviso to subsection (2) of section one hundred and eighty-seven of that Act (which relate to payments out of a county fund and the general rate fund of a borough respectively) shall have effect as if references therein to an enactment included references to an amalgamation scheme.

THIRD SCHEDULE.

TRANSITORY PROVISIONS.

Section 9.

1. All members of a transferred force who are transferred by this Act or by a scheme made thereunder shall be deemed to have been duly appointed as members of the new force under the County Police Act, 1839, or under section one hundred and ninety-one of the Municipal Corporations Act, 1882, as the case may be, and to have been duly attested as such, and shall hold in that force the same ranks respectively as they held immediately before the date of transfer in the force from which they are transferred.

2. Any person appointed before the date of transfer to be a special constable for a transferred area shall, if serving as such immediately before that date, be deemed to have been appointed a special constable for the new area under the Special Constables Act, 1831, or under section one hundred and ninety-six of the Municipal Corporations Act, 1882, as the case may be, and to have been duly attested as such.

3.—(1) For the purposes of the Police Pensions Act, 1921, any member of a transferred force who is transferred by this Act or by a scheme made thereunder shall be entitled to reckon as approved service in the new force any approved service which he was entitled to reckon under that Act immediately before the date of transfer, and any pension, allowance or gratuity granted under that Act before that date to a member of a transferred force or to his widow, children or dependent relatives shall be treated after that date as if it had been granted by the police authority for the new area, and shall be payable by that authority accordingly.

3RD SCH.
—cont.

(2) Any investments which, immediately before the date of transfer, were held in accordance with the provisions of subsection (2) of section twenty-two of the Police Pensions Act, 1921, by the police authority for a transferred area shall be transferred to the police authority for the new area.

6 & 7 Geo. 5.
c. 31.
2 & 3 Geo. 6.
c. 44.

4. Where, immediately before the date of transfer, the watch committee of a borough which ceases to be a separate police area by virtue of section one of this Act were exercising functions under section five of the Police, Factories, &c. (Miscellaneous Provisions) Act, 1916, or under the House to House Collections Act, 1939, then, unless and until the Secretary of State otherwise directs, that committee shall continue to exercise those functions in consultation with the police authority for the county or the combined area, as the case may be.

5.—(1) Where a borough ceases to be a separate police area by virtue of section one of this Act, then, subject to the provisions of the last foregoing paragraph, any regulations made by the police authority for the new area in pursuance of any enactment before the date of transfer shall, if in force on that date, continue in force and have effect throughout that area (including the borough) as if they had been duly made for the whole of that area in pursuance of that enactment, and any regulations made by the police authority for the borough in pursuance of that enactment shall cease to have effect on that date.

(2) Any regulations made under section twenty-three of the Police Pensions Act, 1921, or under Article 6 of the Special Constables Order, 1923, by the police authority for a transferred area not being such a borough as aforesaid, shall cease to have effect on the date of transfer, but without prejudice to the power of the police authority for the new area to make new regulations thereunder.

52 & 53 Vict.
c. 63.

(3) Subsection (2) of section thirty-eight of the Interpretation Act, 1889, shall apply in relation to any regulations which cease to have effect as aforesaid, as if the regulations were an enactment and had been repealed by Act of Parliament.

6. Where any matter has arisen before the date of transfer which affects a member of a borough police force the members of which are transferred to a county force or a combined force constituted by a county scheme and the matter is, on that date, under paragraph (2) of Regulation twenty of the Police Regulations, awaiting determination by the watch committee or entitles him to appear before that committee, then, as from that date, the said paragraph (2) shall apply with respect to that matter as if the chief constable of the county or of the combined force were substituted for the watch committee.

17 & 18
Geo. 5. c. 19.

7. Where immediately before the date of transfer a member of a transferred force is entitled to appeal to a Secretary of State under the Police (Appeals) Act, 1927, or where any such member has appealed to a Secretary of State under that Act before the said date but the appeal has not been determined, the disciplinary authority for the new area shall be the respondent for the purposes of the appeal, and in the case of a pending appeal, shall be substituted as respondent for the disciplinary authority for the transferred force.

8. Any register kept in pursuance of any enactment by the chief constable of a transferred area shall be transferred by him to the chief constable of the new area as soon as may be after the date of transfer, and as from that date shall be deemed to form part of the corresponding register kept by that chief constable.

3RD SCH.
—cont.

9. Subject to the foregoing provisions of this Schedule, anything done before the date of transfer by, to or before the police authority for a transferred area, or by, to or before the chief constable of any such area, shall, in so far as may be necessary for the purpose or in consequence of the provisions of this Act or of the scheme, have effect after that date, as if it had been done by, to or before the police authority for the new area, or the chief constable of that area.

10. In this Schedule—

- (a) the expression "transferred area" means a police area which becomes comprised in the county police area or in a combined police area by virtue of the provisions of this Act or of an amalgamation scheme made thereunder, or which is divided into two or more police areas by virtue of a scheme under this Act amending or revoking such a scheme, and the expression "transferred force" means the police force of a transferred area;
- (b) the expression "new area" means, in relation to any person or property, the police area in which a transferred area becomes comprised as aforesaid or, in the case of an area which is divided into two or more police areas by virtue of a scheme under this Act amending or revoking an amalgamation scheme, such of those areas as may be prescribed by that scheme, and the expression "new force" means the police force of the new area.

FOURTH SCHEDULE.

AREAS COMPRISED IN THE METROPOLITAN POLICE DISTRICT.

Section 16.

The County of London, excluding the City of London ;

The County of Middlesex ;

The County Boroughs of Croydon, East Ham, West Ham ; and the following boroughs, urban districts and rural districts and parishes :—

In the County of Essex : the boroughs of Barking, Chingford, Dagenham, Ilford, Leyton, Walthamstow, Wanstead and Woodford ; and the urban districts of Chigwell, Waltham Holy Cross.

In the County of Herts : the urban districts of Barnet, Bushey, Cheshunt, East Barnet ; the rural district of Elstree ; and the parishes of Northaw in the rural district of Hatfield, and Aldenham in the rural district of Watford.

In the County of Kent : the boroughs of Beckenham, Bexley, Bromley, Erith ; and the urban districts of Chislehurst and Sidcup, Crayford, Orpington, Penge.

4TH SCH.
—cont.

In the County of Surrey: the boroughs of Barnes, Beddington and Wallington, Epsom and Ewell, Kingston, Malden and Coombe, Mitcham, Richmond, Surbiton, Sutton and Cheam, Wimbledon; and the urban districts of Banstead, Carshalton, Coulsdon and Purley, Esher, Merton and Morden.

FIFTH SCHEDULE.

Section 20.

ENACTMENTS REPEALED.

PART I.

ENACTMENTS REPEALED AS FROM THE COMMENCEMENT OF THIS ACT.

<i>Session and Chapter.</i>	<i>Short Title.</i>	<i>Extent of Repeal.</i>
3 & 4 Vict. c. 88 ...	The County Police Act, 1840.	Sections fourteen and fifteen.
19 & 20 Vict. c. 69	The County and Borough Police Act, 1856.	Sections five and twenty.
9 & 10 Geo. 6. c. 26	The Emergency Laws (Transitional Provisions) Act, 1946.	So much of Part II of the First Schedule as relates to the Defence (Amalgamation of Police Forces) Regulations, 1942.

PART II.

ENACTMENTS REPEALED AS FROM THE APPOINTED DAY.

<i>Session and Chapter.</i>	<i>Short Title.</i>	<i>Extent of Repeal.</i>
10 Geo. 4. c. 44 ...	The Metropolitan Police Act, 1829.	In section four, from the beginning of the section, to the words "District; and"; section thirty-four; and the Schedule.
2 & 3 Vict., c. 47...	The Metropolitan Police Act, 1839.	Section two.
23 & 24 Geo. 5. c. 51	The Local Government Act, 1933.	Section one hundred and thirty-six.

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